

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIN YUAN ("JOANNE") LIN,

Petitioner

VS.

WING KWONG QUOCK,

Respondent

) Case Number: FDI-23-797584

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE BIFURCATED STATUS ONLY JUDGMENT AND FAMILY CODE 271
SANCTIONS

TENTATIVE RULING

The parties are ordered to appear by Zoom or in-person at 10 AM on 5/14/2026 to provide the following additional information to the Court:

- 1) Mother shall be prepared to explain why she is seeking COBRA coverage instead of a health insurance plan through Covered California that is comparable to her current health plan and how long she believes she will be eligible for COBRA coverage.**
- 2) Mother shall also be prepared to substantively respond to Father's request that she not be covered under the protections of Family Code section 2337(c)(4) if the Court grants an early termination of marital status.**
- 3) Both parties shall be prepared to provide an estimate for monthly COBRA coverage premiums for Mother.**

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties in this matter are Petitioner Min (Joanne) Lin (Mother) and Respondent Wing Quock (Father). The parties married on 9/19/2011. Mother states the parties' date of separation is TBD. Father states the parties' date of separation was 8/1/2020, for a marriage of 8 years and 11 months. The parties have two minor children, Hannah (DOB: 12/6/2012) and Sophia (DOB: 6/20/2015). Father is represented by attorney Arusyak Abrahamyan. Mother is represented by attorney Randy Rabidoux.
- 2) On 3/15/2023, a 3-Year Restraining Order After Hearing was entered to protect Mother and the parties' two children against Father.
- 3) On 3/10/2026, pursuant to a stipulated agreement of the parties, an Order to Renew Domestic Violence Restraining Order was filed, extending the expiration date of the restraining order to 3/15/2031.
- 4) Now on for hearing is Father's Request for Order filed 3/9/2026 asking the Court to bifurcate and terminate the parties' marital status and to award Father \$4,875.50 in Family Code section 271 attorney's fees sanctions. Father states the parties have been meeting and conferring through counsel regarding Father's request to terminate the parties' marital status. Father states he has offered to maintain health insurance coverage for the parties' daughters and to pay the monthly premiums for Mother to obtain health insurance coverage comparable to what she has through Father's employer. However, Mother has not agreed to his request to bifurcate and terminate marital status.
- 5) On 3/9/2026, Father's attorney Arusyak Abrahamyan filed a declaration. Ms. Abrahamyan states that on 10/31/2025, her office emailed Mother's attorney a proposed status-only judgment for his review. Ms. Abrahamyan states that although Mother's attorney stated he would propose edits to Father's proposed status-only judgment, no proposed edits to the judgment forms were provided. Ms. Abrahamyan also states that on 1/15/2026 her office provided Mother's attorney with the contact information for Father's employer's HR department (so that Mother could speak with the appropriate representative regarding COBRA coverage), but no further response has been received from Mother's attorney. Ms. Abrahamyan states Father has incurred attorney's fees for Ms. Abrahamyan to meet and confer with Mother's attorney, discuss the health insurance

1 concerns with Father, prepare this Request for Order and Father will incur additional fees for Ms.
2 Abrahamyan to represent Father at the hearing. Ms. Abrahamyan estimates that Father will incur
3 a total of \$4,875.50 in attorney's fees and costs for these tasks.

4 6) On 5/1/2026, Mother filed a Responsive Declaration. Mother asks the Court to order Father to be
5 "responsible for payment of the cost of COBRA continuation of the existing PG&E health and
6 medical insurance coverage for me and continued health insurance coverage for our children until
7 entry of judgment on all reserved issues" and to enter the Judgment proposed by Mother. Mother
8 states she understands that upon termination of the marriage, she will no longer be eligible for
9 health insurance coverage through Father's employer, but she will be eligible to continue the
10 existing coverage through COBRA continuation coverage. Mother states Father refused to pay
11 the COBRA premium and insisted that she secure cheaper coverage through a subsidized public
12 option. Then Father agreed to pay the COBRA premiums but only upon the condition that he later
13 seek repayment of them "along with all of my health insurance costs since we separated in 2023."
14 Mother states, "I will be no better able to reimburse Wing for the cost of my health insurance at
15 the end of this proceeding than I am able to pay it now."

16 7) Attached to Mother's Responsive Declaration is a declaration by her attorney Randy Rabidoux.
17 Mr. Rabidoux states that his office made multiple calls to Father's employer PG&E, its benefits
18 provider, and the current insurance carrier to ascertain the cost of the COBRA premium, but each
19 entity stated that securing that information requires Father's authorization and involvement. Mr.
20 Rabidoux informed Father's attorney of this but, to date, Father has not provided this information.
21 Mr. Rabidoux notes that the current child and spousal support order (Findings and Order After
22 Hearing filed 6/14/2023) is based on a support calculation which takes into account a deduction
23 of \$2,700 per month for Father's payment of health insurance. Mr. Rabidoux argues, "By
24 conditioning his continued payment for Joanne's health insurance upon a right to seek
25 reimbursement for all insurance payments since the parties separated, Wing seeks to transfer that
26 entire cost to Joanne, along with any increase that is caused by his request for the early
27 termination of the parties' marital status. Joanne, who supports her household from the support
28 set on the basis of Wing paying her insurance, cannot afford this. Wing can and should be
29 responsible for this expense, as the existing support order contemplates. Wing is attempting to use

1 his request to bifurcate the parties' marital status as a pretext to shift the costs of Joanne's health
2 insurance to her – prospectively and retroactively -- despite his substantial \$13 million estate and
3 her far more limited financial resources. It is this effort, along with Wing's initial insistence on
4 subsidized insurance and his continued refusal to disclose the cost of COBRA coverage that is
5 accessible only to him, that has prevented resolution of this matter by agreement." Mr. Rabidoux
6 further notes that Father's proposed status-only Judgment "fail[s] to include the customary
7 protections Family Code section 2337, subdivisions (c) and (d)." Finally, Mr. Rabidoux notes that
8 Father has a Pacific Gas & Electric pension and IRA accounts that have not been joined as parties
9 to this proceeding.

10 8) On 5/1/2026, Mother filed a Memorandum of Points and Authorities. Mother cites Family Code
11 section 2337(c)(2) which provides that when granting an early termination of marital status, "The
12 court may impose upon a party any of the following conditions... Until judgment has been
13 entered on all remaining issues and has become final, the party shall maintain all existing health
14 and medical insurance coverage for the other party and any minor children as named dependents,
15 so long as the party is eligible to do so. If at any time during this period the party is not eligible to
16 maintain that coverage, the party shall, at the party's sole expense, provide and maintain health
17 and medical insurance coverage that is comparable to the existing health and medical insurance
18 coverage to the extent it is available. To the extent that coverage is not available, the party shall
19 be responsible to pay, and shall demonstrate to the court's satisfaction the ability to pay, for the
20 health and medical care for the other party and the minor children, to the extent that care would
21 have been covered by the existing insurance coverage but for the dissolution of marital status, and
22 shall otherwise indemnify and hold the other party harmless from any adverse consequences
23 resulting from the loss or reduction of the existing coverage. For purposes of this subdivision,
24 'health and medical insurance coverage' includes any coverage for which the parties are eligible
25 under any group or individual health or other medical plan, fund, policy, or program."

26 9) On 5/7/2026, Father filed a Reply Declaration. Father states he agrees to pay the COBRA
27 premiums and that the "single, narrow issue I have requested is that my potential reimbursement
28 claim be reserved for later determination by the Court, not that Petitioner agree to reimburse me,
29 and not that she waive her right to oppose such a claim if and when it is actually litigated." Father

1 states, "Petitioner's refusal to execute any stipulation that includes this reservation is
2 unreasonable and has directly caused the need for this hearing." Father states he acknowledges
3 that the current support order is based on his paying \$2,700 per month for insurance premiums
4 and this is "precisely why I have proposed Covered California coverage, which would likely have
5 resulted in a premium at or near that figure, reducing or eliminating my reimbursement claim
6 entirely. Petitioner rejected that proposal and insisted on COBRA, which I understand will be
7 significantly higher than \$2,700 per month. My reimbursement claim is directed at that
8 incremental difference, the amount above and beyond what is accounted for in the support order,
9 incurred solely at Petitioner's insistence." Father states that Mother's attorney only reached out to
10 PG&E HR after Father filed his Request for Order to obtain the COBRA cost information. Father
11 states he has not had success obtaining that information either. Father further states that his
12 PG&E pension was inadvertently omitted from the parties' stipulation dividing their retirement
13 accounts and that Mother raised this issue for the first time in her 5/1/2026 Responsive
14 Declaration. Father states he is willing to stipulate that the community property portion of the
15 PG&E pension also be divided by QDRO according to the same terms as the parties previously
16 agreed regarding the division of the IRA Accounts. Father further requests that the Court not
17 grant a probate family allowance under Family Code section 2337(c)(4) because he is 70 years
18 old, Mother is 49 years old, Mother filed the Petition for Dissolution, and granting this condition
19 would incentivize Mother to delay resolution of the remaining issues in the case "as she would
20 stand to benefit from my estate as if she were my surviving spouse if I pass before final judgment
21 is entered."

22 10) The Court notes that, other than a hearing on 5/26/2026 on Mother's Request for Order filed
23 4/14/2026 seeking Court authorization to renew the children's passports and travel with them
24 internationally, there are no future hearings or conferences set in this matter.

25 **B. Findings and Order**

26 1) The Court finds that joinder of Father's PG&E pension plan is not necessary under Family Code
27 section 2337(d)(1) because the pension may later be divided through a QDRO consistent with
28 ERISA. The Court also finds that Family Code section 2337(d)(1) does not require that Individual
29 Retirement Accounts (IRA) accounts be joined as parties to the proceeding.

1 2) Father's request for attorney's fees sanctions is denied.

2 3) **The parties are ordered to appear to provide the following additional information to the**
3 **Court:**

4 a. **Mother shall be prepared to explain why she is seeking COBRA coverage instead of**
5 **a health insurance plan through Covered California that is comparable to her**
6 **current health plan and how long she believes she will be eligible for COBRA**
7 **coverage.**

8 b. **Mother shall also be prepared to substantively respond to Father's request that she**
9 **not be covered under the protections of Family Code section 2337(c)(4) if the Court**
10 **grants an early termination of marital status.**

11 c. **Both parties shall be prepared to provide an estimate for monthly COBRA coverage**
12 **premiums for Mother.**